

Road to Homestead Avenue is part of the Harts' property) is granted.

Costs on Appeal

The Wilcoxsons were awarded their costs on appeal. They filed a memorandum of costs on March 28, 2025, for \$1,025.44. The Milways did not file a motion to tax costs. When the Wilcoxsons filed this motion they had not received payment for the costs. In the opposition, however, the Milways provide proof that they paid the costs on June 11, 2026. (Haramalis dec. ¶9.) Therefore, the request for costs is moot.

Request for Order on Obstructions

The Wilcoxsons also request an order directing the Milways to immediately remove all obstructions from the easements to allow the easements to be used as they were used prior to the date that the Milways purchased 1000 Homestead. The Court of Appeal did not enter judgment in the Wilcoxsons' favor on the easement issues. Instead, the reversal by the Court of Appeal found that there were issues that should be decided by the trier of fact.

The Wilcoxsons' request that the Milways be ordered to remove obstructions from the easement area is not supported by the Court of Appeal's order and is otherwise not supported by this motion. The request is **denied**.

Case Management

This case was scheduled for a jury trial approximately one month after the motions for summary judgment and adjudication were heard in 2023. Thus, this case appears ready for trial. The Court plans to re-set this case for jury trial as soon as possible.

The Court sets a trial setting conference for August 27, 2026, at 8:30a.m. Appearances by Zoom are acceptable. At least five court days before the hearing, the parties shall file and serve trial setting conference statements that address the following points: (1) when is the earliest the parties will be ready for trial, (2) the estimate trial length, (3) do the parties plan to proceed with a jury trial (as originally scheduled) or a court trial, (4) any dates the parties are unavailable for trial in the next 12 months and (5) is there any concern with the 5 year statute?

13. 9:00 AM CASE NUMBER: MSC20-02183

CASE NAME: GARY ELLIS VS. ARB, INC.

COMPLIANCE HEARING SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 15, 2025.

Upon review of the compliance report filed by Plaintiff and Co-Class Counsel, and the declaration filed by Kevin Lee of Phoenix Settlement Administrators certifying disbursement filed on July 27, 2026, the

Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$ \$18,976,72 to Plaintiff's Counsel.
2. The Court orders the release of \$198,209.42 representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

14. 9:00 AM CASE NUMBER: MSC20-02432
CASE NAME: PLASCENCIA VS THE COUNTER WALNUT CREEK LP
COMPLIANCE HEARING ON SETTLEMENT SET BY THE COURTROOM.
FILED BY:

TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on August 11, 2025.

Upon review of the compliance report filed by Plaintiffs Pedro Negrete Plascencia and Nicole Anaya, individuals and on behalf of other persons similarly situated, through Class Counsel, and the declaration filed by Mayra Gonzalez of Phoenix Settlement Administrators certifying disbursement filed on July 28, 2026, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$ \$3,582.98 to Plaintiffs' Class Counsel.
2. The Court orders the release of \$40,203.85 representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01549
CASE NAME: HALATOA VS DIABLO COUNTRY CLUB
FINAL APPROVAL SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Sunia Halatoa, Harmesh Bangar, individually and on behalf of others similarly situated, filed a